

§ 350.3. Dispositional hearings; evidence and required quantum of proof - appearance of presentment agency. 1. Only evidence that is material and relevant may be admitted during a dispositional hearing.

2. An adjudication at the conclusion of a dispositional hearing must be based on a preponderance of the evidence.

3. The presentment agency shall appear at the dispositional hearing.

4. The victim has the right to make a statement with regard to any matter relevant to the question of disposition. If the victim chooses to make a statement, such individual shall notify the court at least ten days prior to the date of the dispositional hearing. The court shall notify the respondent no less than seven days prior to the dispositional hearing of the victim's intent to make a statement. The victim shall not be made aware of the final disposition of the case.